

TENTATIVE RULINGS

FOR: September 03, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. A will be heard in Dept. B ****

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Rose Jackson

21PR000029

[1] THIRD ACCOUNT AND REPORT OF CONSERVATOR AND REQUEST FOR APPROVAL OF PAYMENT OF ATTORNEY’S FEES

[2] REVIEW HEARING

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. Bond is decreased to \$193,216.86. After a review of the matter, the Court finds the Conservator is acting

in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on September 05, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Heidemarie A. Devore

25PR000271

PETITION FOR FINAL DISTRIBUTION OF DECEDENT’S ESTATE

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 18, 2026 Hearing Re: Final Distribution is therefore VACATED.

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In the Matter of the Bruce Sandoval Trust

26-60272

VERIFIED SEVENTH ACCOUNT OF SPECIAL NEEDS TRUST AND PETITION FOR ITS APPROVAL, FOR ALLOWANCE OF COMPENSATION TO TRUSTEE AND ALLOWANCE OF COMPENSATION TO TRUSTEE’S ATTORNEYS AND BOND FEES

TENTATIVE RULING: The petition is GRANTED. The matter is set for an Eighth Accounting on August 15, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The Clerk is directed to send notice to the parties.

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Conservatorship of Mary Jo Freeman

26PR000171

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

TENTATIVE RULING: The matter is CONTINUED to October 01, 2026, at 8:30 a.m. in Dept. B.

The proposed conservatee needs counsel appointed and counsel needs notice of the hearing. Petitioner shall prepare an order appointing the Public Defender for the Court’s signature and provide notice of the continued hearing date to the Public Defender.

The Court notes that the Amended Petition checks box 8(c), indicating that the Proposed Conservatee is unable to attend the hearing due to medical inability. To the extent the Proposed Conservatee does not plan to appear at the continued hearing, Petitioner shall file the Declaration on Medical Ability to Attend Hearing (Judicial Counsel of California form GC-325).

Petitioner is encouraged to contact the Court’s Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Susan Scurich et al v. Northgate Cottages at Silverado, Inc. et al

24CV000076

MOTION TO BE RELIEVED AS COUNSEL

APPEARANCE REQUIRED

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Platte River Insurance Company v. William Deem et al

24CV000384

MOTION FOR AWARD OF ATTORNEY FEES

TENTATIVE RULING: the motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

“Code of Civil Procedure section 1021 provides the basic right to an award of attorney fees.” (*Xuereb v. Marcus & Millichap, Inc.* (1992) 3 Cal.App.4th 1338, 1341 (*Xuereb*)). “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties....” (Code Civ. Proc., § 1021; see also Code Civ. Proc., § 1033.5, subd. (a)(10)(A) [allowing attorneys’ fees authorized by contract as costs].)

By Minute Order of December 4, 2025 (12/4/25 M.O.), the Court found that “Plaintiff, Defendant Kimberton Wines, LLC (as Applicant and Indemnitor) and Defendant William Deem (as Indemnitor) entered into that certain General Indemnity Agreement (Agreement) attached as Exhibit A to the Declaration of Justin Hinton (Hinton Decl.).”

That Agreement provides, in part, that “Indemnitors, individually, and jointly and severally with Applicant and all other Indemnitors, agree to hold CIC and/or PR harmless from all Loss and to pay back or reimburse CIC and/or PR for all Loss.” (*Id.* at ¶ 2.) The Agreement defines Loss to include, “any payment or expense either incurred or anticipated by CIC and/or PR in connection with any Bond or this agreement, including: . . . any other expense in connection with claims, potential claims, or demands; claim fees, penalties; interest; court costs; collection agency fees; costs related to taking, protecting, administering, realizing upon, or releasing collateral; and attorney’s fees (including but not limited to those incurred in defense of bond claims or pursuing any rights of indemnification or subrogation and in obtaining and enforcing any judgment arising from those rights.” (*Ibid.*)

“Civil Code section 1717 provides that ‘[r]easonable attorney’s fees shall be fixed by the court.’...[T]his requirement reflects the legislative purpose ‘to establish uniform treatment of fee recoveries in actions on contracts containing attorney fee provisions.’ [Citation.] Consistent with that purpose, the trial court has broad authority to determine the amount of a reasonable fee. [Citations.]” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1094-1095.) The party moving for an award of attorneys’ fees bears the burden of showing “that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (*Id.* at 816.)

The Court finds, from the Declaration of Edward Rubacha, that the tasks undertaken by counsel for Plaintiff in this action were reasonably necessary to the conduct of the litigation. (See *id.* at ¶¶ 3, 5-22, and Exh. A.) The Court further finds that the amounts of time spent on each task were reasonable. Finally, the Court finds that the amount charged by counsel is consistent with fees typically charged in the community for similar work.

Based on the foregoing, the Motion is GRANTED.

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Luis Sepulveda v. David Abreu Vineyard Management, Inc.

24CV000839

STATUS OF PAGA SETTLEMENT COMPLIANCE

APPEARANCE REQUIRED. The February 11, 2026 Order provides: “Upon completion of the Settlement, the Settlement Administrator will provide written certification of the completion to the Court and counsel for the Parties by August 3, 2026 which shall be filed with the Court on or before July 13, 2026.” (¶ 16.) There is nothing new in the Court file since February 11, 2026. Appearances are required to update the Court on the status of compliance with the settlement terms.

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Ron Peters v. Garrett Lloyd Brumley et al

25CV000149

CROSS-DEFENDANT ACME CHASSIS FACTORY’S DEMURRER TO THE FIRST AMENDED CROSS-COMPLAINT OF GARRETT LLOYD BRUMLEY, CRYSTAL A. BRUMLEY, dba THREE FIVE CUSTOMS; CONSOLIDATED PERFORMANCE INC. dba THREE FIVE CUSTOMS

TENTATIVE RULING: The demurrer is SUSTAINED. Cross-Complainants are granted 10 calendar days leave, from entry of the instant ruling, to amend the operative cross-complaint. (See Rules of Court, rule 3.1320(g).)

A. PRELIMINARY MATTERS

Cross-Defendant Acme Chassis Factory LLC, a Texas Limited Liability Company (Acme), erroneously sued and served as Acme Chassis Factory, demurs, pursuant to Code of

Civil Procedure, section 430.41, subdivision (a), to the Fifth and Sixth Causes of Action – the only causes of action asserted against Acme – in the First Amended Cross-Complaint (FACC) filed on February 3, 2026. Acme demurs on grounds that the FACC fails to allege facts sufficient to state a claim against Acme.

The instant action arises out of an alleged agreement, by and between Plaintiff Ron Peters, and Cross-Complainants for the restoration of a 1975 Ford Bronco belonging to Plaintiff. Plaintiff asserts claims of breach of contract and promissory estoppel against Cross-Complainants. Through the FACC, Cross-Complainants assert four causes of action against Plaintiff, and the two claims subject to the instant demurrer against Acme and co-defendant RHAB, Inc. (RHAB).

B. LEGAL BACKGROUND

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . [t]he pleading does not state facts sufficient to constitute a cause of action . . .” (Code Civ. Proc., § 430.10, subd. (e).) A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer “‘does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading. . . the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. LEGAL ANALYSIS

The Fifth Cause of Action is titled “Implied Indemnity.” Acme asserts that “Cross-Complaint fails to state facts sufficient to ascertain if it’s a theory of Implied Equitable Indemnity sounding in negligence or Implied Contract Indemnity, and the Cross-Complaint generally fails to state facts sufficient to constitute a cause of action for either theory of Implied Indemnity . . .” (Support Memo at 2:2-5.)

Through the Opposition, Cross-Complainants assert that their theory is one of equitable indemnity arising out of contract. (See, *e.g.*, *id.* at 5:14-15 [“The 5th Cause of Action States a Claim for Implied Contractual Indemnity, Which Requires Neither a Tort nor Joint Liability”].) Cross-Complainants

“The right to implied contractual indemnity is predicated upon the indemnitor’s breach of contract, ‘the rationale ... being that a contract under which the indemnitor undertook to do work or perform services necessarily implied an obligation to do the work involved in a proper manner and to discharge foreseeable damages resulting from improper performance absent any participation by the indemnitee in the wrongful act precluding recovery.’ [Citation.]” (*West v. Super. Ct.* (1994) 27 Cal.App.4th 1625, 1633.)

The Court is unable, however, to locate, in the FACC, any allegation of a contractual relationship between Cross-Complainants, or any of them, and Acme. Cross-Complainants contend, here, that they “allege[] the relationship between Cross-Complainants and Acme as manufacturer of the chassis for the Bronco (FACC ¶¶ 6, 12, 13) . . .” There is, however, *no relationship* between Cross-Complainants and Acme alleged at any of the cited paragraphs, let alone a contractual relationship.

Based on the foregoing, the Court finds that Cross-Complainants have failed to allege facts sufficient to state a claim for implied contractual indemnity.

Moreover, the Court finds that, while the FACC purports to state a claim for Declaratory Relief as a “Sixth Cause of Action,” that section of the FACC merely reasserts the allegations relating to Cross-Complainants’ purported implied indemnity cause of action. “A trial court may . . . dismiss a declaratory relief claim at the demurrer stage where it is “‘wholly derivative’” of other failed claims.” (*Siskiyou Hospital, Inc. v. Co. of Siskiyou* (2025) 109 Cal.App.5th 14, 53.)

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the allegations in the FACC and the arguments made through the Opposition, a reasonable possibility that Cross-Complainants can amend to state a good cause of action.

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

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Regina Dal Poggetto v. Richard P. Solis

25CV002373

DEFENDANT RICHARD PAUL SOLIS’S MOTION TO DISMISS FOR LACK OF SUBJECT MATTER JURISDICTION

TENTATIVE RULING: The matter is CONTINUED to October 15, 2026, at 8:30 a.m. in Dept. B.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) The Proof of Service indicates that the moving papers and notice of hearing were served on Plaintiff, by mail, on August 20, 2026. Thus, Defendant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) [“all moving

and supporting papers shall be served and filed at least 16 court days before the hearing . . . [and] . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California”].)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Bayli Beardsley v. Chipotle Mexican Grill, Inc. et al

26CV000153

MOTION TO DISMISS ACTION FOR DELAY IN PROSECUTION

TENTATIVE RULING: The motion is DENIED IN PART and GRANTED IN PART. The motion for an order to show cause (“OSC”) why the action should not be dismissed is DENIED. The alternate motion for an OSC why sanctions should not be imposed is GRANTED.

The matter is set for an OSC Re: Monetary Sanctions for Failure to Comply with CRC 3.110(b) on October 2, 2026 at 8:30 a.m. in Dept. B, to coincide with the Case Management Conference. Responsive papers must be filed and served at least 5 calendar days before the hearing. (See Rules of Court, rule 3.110(i).)¹ Plaintiff’s responsive papers should, at minimum, address (1) the factors for extension of time to serve a summons and complaint under rule 3.110(e) and (2) the amount of monetary sanctions requested by Defendant Napa Crossing East II, LLC (“Defendant”) as further discussed below. Defendant is invited to serve and file a reply to Plaintiff’s responsive papers. If Defendant elects to do so, the reply must be served and filed no later than 3 calendar days before the hearing.

Defendant is directed to immediately provide Notice of Entry of this Order to all parties.

A. PROCEDURAL MATTERS

Defendant moves, pursuant to rule 3.110(b), for an OSC why the action should not be dismissed and/or why sanctions should not be imposed, and for such other relief as the Court deems just. The motion is made on the grounds that Plaintiff failed to serve the Summons and Complaint on Defendant within 60 days after the Complaint was filed and did not effect service until 164 days after filing—without leave of Court, stipulation, or any application for an order extending time—and without any reasonable excuse for the delay, to Defendant’s prejudice.

¹ All subsequent references to “rule” are to the Rules of Court unless otherwise specified.

B. LEGAL STANDARD

“The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” (Rule 3.110(b).) “The court, on its own motion or on the application of a party, may extend or otherwise modify the times provided in (b)-(d). An application for a court order extending the time to serve a pleading must be filed before the time for service has elapsed. The application must be accompanied by a declaration showing why service has not been completed, documenting the efforts that have been made to complete service, and specifying the date by which service is proposed to be completed.” (Rule 3.110(e).) “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” (Rule 3.110(f).)

Defendant further cites to Code of Civil Procedure sections 128(a)(8), 575.2, 583.130, and 583.410-583.430 for support of the Court exercising its discretion under rule 3.110(b), while acknowledging that none of the mentioned Code of Civil Procedure sections are applicable to the instant circumstances. (See Mem., pp. 5-7.)

C. DISCUSSION

Here, Plaintiff filed the Complaint on January 23, 2026. Pursuant to Rule 3.110(b), Plaintiff was required to serve Defendants and file a proof of service no later than March 24, 2026. There is no proof of service of the Complaint on any party in the Court file. According to Defendant, Plaintiff served the Summons and Complaint on July 6, 2026, which is 164 days after the Complaint was filed and 104 days beyond the deadline under rule 3.111(b). Plaintiff neither applied for, nor obtained, an order extending the time for service under rule 3.111(e). Defendant shows that there is no stipulation between the parties for such an extension.

Defendant argues that Plaintiff cannot show reasonable diligence or excuse for the delay in serving Defendant, as Defendant’s agent for service of process—where Defendant was served on July 6, 2026—has been the same since 2019. (Mem., p. 8, ¶ 13.) Defendant further argues that it has been prejudiced by the delay, in that it has “impeded the ability of the Defendant to investigate or vet the Plaintiff’s allegations, especially given the fact that the Defendant does not have control of the space within which the Plaintiff alleges to have been injured,” and “deprived [Defendant] of any opportunity to investigate or preserve any evidence which may have been relevant to a defense of such allegation.” (Mem., pp. 5, 8, ¶¶ 6-7, 14-15.)

Rule 3.110 provides no authority for the dismissal of an action based on a failure to comply with any of its terms. While rule 3.110 does not specify the type of sanctions for which it is allowed to issue an OSC, “[t]he court is presumably limited to awarding *monetary sanctions* for violation of CRC 3.110.” (Weil and Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial, (The Rutter Group, June 2026), Ch. 4-D, § 4:352, citing Rule 2.30 [authorizing the court to issue monetary sanctions for failure to comply with Rules of Court]; see also Cal. Civ. Ctrm. Handbook and Desktop Reference, § 10:14 [“a court has no inherent authority to dismiss the case for a delay of fewer than two years, or for violation of court rules such as these that are the

attorney’s responsibility.”].) Here, Defendant concedes that the delay is “well short of that two-year mark.” (Mem., p. 7.) Based on the foregoing, Defendant’s request for an OSC regarding dismissal of the action is DENIED.

With respect to Defendant’s alternate request, although unclear, Defendant appears to be requesting an OSC regarding monetary sanctions in the amount of at least \$2,625, plus the initial filing fee, as the amount incurred in connection with bringing the present motion. (Mem., p. 9.)

The Court notes that it rarely, if ever, deals with motions concerning rule 3.110. Moreover, as a general matter of practice, the Court has rarely, if ever, *sua sponte* issued an OSC pursuant to rule 3.110(f). The Court further notes the unremarkable relief generally awarded in this circumstances. See Cal. Judges Benchbook: Civ. Proc. Before Trial (Mar. 2026), § 2.28 [“Most judges do not generally impose monetary sanctions on the first OSC, as long as the attorney has a reasonable explanation for the delay and promises to comply with the new deadline the judge has specified. A calendaring mistake is not viewed as a ‘reasonable explanation.’ If the attorney does not comply with the new deadline and cannot show good cause for failing to comply, monetary sanctions of \$100–\$250 are imposed against the attorney.”].)

That said, given that it is undisputed that Plaintiff has not complied with rule 3.110(b), has not established the factors to justify an extension of time to serve the Summons and Complaint, has not yet filed a Proof of Service of the Summons and Complaint, and has not filed an Opposition to this Motion, the Court elects to exercise its discretion to GRANT the alternate motion for an OSC why sanctions should not be imposed. The Court finds that this procedure will properly place the burden on Plaintiff to justify the delay, as opposed to placing the burden on Defendant to first show prejudice.

As such, the matter is set for an OSC Re: Monetary Sanctions for Failure to Comply with CRC 3.110(b) on October 2, 2026 at 8:30 a.m. in Dept. B, to coincide with the Case Management Conference. Responsive papers must be filed and served at least 5 calendar days before the hearing. (See rule 3.110(i).) Plaintiff’s responsive papers should, at minimum, address (1) the factors for extension of time to serve a summons and complaint under rule 3.110(e) and (2) the amount of monetary sanctions requested by Defendant. Defendant is invited to serve and file a reply to Plaintiff’s responsive papers. If Defendant elects to do so, the reply must be served and filed no later than 3 calendar days before the hearing.

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Laurie Capitelli et al v. Melinda Stewart et al

26CV000878

DEMURRER TO PLAINTIFFS’ VERIFIED COMPLAINT

TENTATIVE RULING: The Demurrer is OVERRULED. Defendant Melinda Stewart (“Ms. Stewart”) is granted 10 days’ leave from entry of this order to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

A. PROCEDURAL MATTERS

Ms. Stewart demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), to the Verified Complaint filed by Plaintiffs on grounds that the Complaint fails to allege facts supporting the causes of action asserted against Ms. Stewart and that each of those causes of action is uncertain.

In Reply, Ms. Stewart withdraws her Demurrer to the Third, Fourth, and Fifth Causes of Action, following Plaintiffs' confirmation that they are asserted solely against co-defendants California Law Center ("CLC") and William Roger Utnehmer ("Utnehmer") (collectively, "Co-Defendants"). (Reply, 10:17-21; see also Opp., 2:13-15, 9:1-5.) Thus, this ruling only addresses the Demurrer to the First and Second Causes of Action.

Ms. Stewart's Request for Judicial Notice ("RJN") of the recorded documents (Exhibits A-C) is GRANTED. (Evid. Code, § 452, subd. (h).) Courts may take judicial notice of the existence and recordation of real property records, including deeds and deeds of trust, when the authenticity of the documents is not challenged. (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 802-03.) "A court may take judicial notice of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265, overruled on other grounds.) Here, Plaintiffs do not challenge the authenticity of the records; in fact, Plaintiffs attached the same documents to their Complaint.

Ms. Stewart's Objections to Plaintiffs' Evidence submitted with their Opposition is SUSTAINED. Ms. Stewart's Objection to Exhibit A [Plaintiffs' Verified Complaint] to the Declaration of Tanner D. Brink ("Brink Decl.") is SUSTAINED on the ground that a copy of the Verified Complaint is not necessary, given that the Court has access to review the filed copy. Ms. Stewart's Objections to Brink Decl., Exh. B [The Dry Creek Trust] and Exh. D [The Certification of the Dry Creek Trust] is SUSTAINED as improper extrinsic matter not subject to judicial notice. Ms. Stewart's Objection to Brink Decl., Exh. C [Ms. Stewart's Federal Complaint against Co-Defendants] is SUSTAINED on the ground that the Federal Complaint is not relevant to the disposition of this demurrer.

B. RELEVANT FACTUAL BACKGROUND

The instant litigation arises out of a nonjudicial foreclosure of Plaintiffs' deed of trust, recorded December 17, 2024 ("Plaintiffs' DOT"), and an October 31, 2025 trustee's sale of real property located at 4598 Dry Creek Road in Napa, California ("Property") by Plaintiffs.

Plaintiffs' DOT secured, against the Property, a private money loan, from Plaintiffs to CLC (through Utnehmer), in the amount of \$741,000.00. (Compl., ¶ 24, Exh. 6 [Plaintiffs' DOT]; see also RJN Exh. B [same].) Co-Defendants obtained the loan in their capacity as Trustee of the Dry Creek Trust. (Compl., ¶¶ 21, 24, 27, Exh. 6.) The Dry Creek Trust was created by Ms. Stewart, as Trustor, in September 2024 for the management and control of the Property. (*Id.*, ¶ 21.) In connection with the Dry Creek Trust, Ms. Stewart executed and

notarized, on October 7, 2024, a Grant Deed transferring her individual interest in the Property to CLC (through Utnehmer), as Trustee of the Dry Creek Trust (“Trust GD”). (*Id.*, ¶ 22.) However, the Trust GD was not recorded until December 30, 2024, *after Plaintiffs’ DOT was recorded.* (*Ibid.*, Exh. 5 [Trust GD]; see also RJN Exh. A [same].)

Plaintiffs’ loan to the Dry Creek Trustee was allegedly used to pay off a prior deed of trust, secured against the Property in favor of Washington Mutual Bank (“WAMU DOT”) in the amount of \$476,047.61. (Compl., ¶¶ 27, 36(5), Exh. 7 [WAMU DOT Substitution of Trustee and Deed of Reconveyance]; see also RJN Exh. C [same]; see also Compl., ¶¶ 12, 14, 16 [allegations regarding WAMU DOT].) The WAMU DOT Substitution of Trustee and Deed of Reconveyance was executed the same day that the Trust GD was recorded—December 30, 2024.

Prior to the execution of the Dry Creek Trust and the Trust GD, title to the Property was in Ms. Stewart’s name, solely. (Compl., ¶¶ 10, 17, Exh. 1 [10/3/2000 Grant Deed], Exh. 3 [Thane Williams’ 8/17/18 Quitclaim Deed].)

Plaintiffs’ DOT required the Dry Creek Trust to make monthly interest-only payments of \$7,410.00 with the balance of Plaintiffs’ loan amount due and payable on January 1, 2026. (*Id.*, ¶ 28.) Plaintiffs did not receive any payments and thus began nonjudicial foreclosure proceedings in March 2025 by recording and serving a Notice of Default. (*Id.*, ¶ 29.) In June 2025, Plaintiffs recorded a Notice of Trustee’s Sale, and the trustee’s sale was held on October 31, 2025. (*Ibid.*) The Trustee’s Deed Upon Sale has not been delivered or recorded, due to threats by Ms. Stewart’s counsel. (*Ibid.*) Defendants claim that Plaintiffs’ DOT and subsequent foreclosure of the Property is void because it was recorded before the Dry Creek Trustee had title to the Property. (*Id.*, ¶ 30.)

Plaintiffs’ Complaint asserts two causes of action against Ms. Stewart and Co-Defendants: (1) Quiet Title/Declaratory Relief against all Defendants, and (2) Equitable Lien/Equitable Mortgage against all Defendants.

C. LEGAL STANDARD

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

D. LEGAL ANALYSIS

1. First Cause of Action for Quiet Title/Declaratory Relief

a. *The Nature of the First Cause of Action*

Neither party discusses the elements of either a quiet title claim, or a declaratory relief claim, despite Ms. Stewart's first ground being that the complaint fails to allege facts sufficient to state such causes of action.

Any person claiming rights under a contract (oral or written) or under a written instrument other than a will or trust, or with respect to property, may bring an action for a declaration of the person's rights or duties with respect to another. (Code Civ. Proc., § 1060.) "The fundamental basis of declaratory relief is the existence of an *actual, present controversy* over a proper subject." (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79. Emphasis in original.)

A quiet title action must include (1) a description of the property that is the subject of the action, (2) the title of the plaintiff as to which a determination is sought and the basis of the title, (3) the adverse claims to the title of the plaintiff against which a determination is sought, (4) the date as of which the determination is sought, and a prayer for the determination of the title of the plaintiff. (Code Civ. Proc., § 761.020.)

b. *The Complaint Alleges Facts Sufficient to Constitute the First Cause of Action*

Here, Plaintiffs have alleged facts sufficient to constitute a cause of action for both declaratory relief and/or quiet title,² as the Complaint alleges facts establishing the existence of an actual, present controversy and the facts required under section 761.020.

The Relevant Factual Background section recapitulates those factual allegations above. And the allegations under the First Cause of Action label specify that Plaintiffs seek a judicial declaration establishing that the October 31, 2025 foreclosure sale is valid and enforceable and that a Trustee's Deed Upon Sale should be delivered to Plaintiffs and recorded to confirm title to the Property in favor of Plaintiffs. (Compl., ¶¶ 32, 36(1), (6).) Alternatively, Plaintiffs seek a judicial declaration that Plaintiffs' DOT is a first priority position lien against the entirety of the Property and quieting title to Plaintiffs' DOT by establishing that Ms. Stewart has no right whatever in the Property superior to Plaintiffs' lien. (*Id.*, ¶¶ 33, 36(2), (6).)

The Complaint alleges that Ms. Stewart disputes the foregoing. (*Id.*, ¶¶ 32-35.)

² The Court acknowledges Ms. Stewart's argument that the declaratory relief label embedded in the first cause of action is duplicative of the quiet title label. However, duplicative pleading, "if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890; *R.L. v. Merced City School Dist.* (2025) 114 Cal.App.5th 89, 119 [reversing an order sustaining the demurrer and adopting *Blickman's* holding that "[r]edundancy, however, is not enumerated as one of the statutory grounds on which a demurrer may be sustained"].) Thus, the Court does not find that the duplicity argument is grounds for demurrer here.

In support of both alternate declarations, Plaintiffs rely on either (1) the after acquired title doctrine or (2) the bona fide encumbrancers doctrine. (*Id.*, ¶ 36(3)-(4).)

As a final alternative declaration, if the Court determines that neither the foreclosure sale or Plaintiffs' DOT are valid, Plaintiffs seek a judicial declaration that they are entitled to an equitable lien against the Property because their loan proceeds were used to satisfy the WAMU DOT. (Compl., ¶ 36(5).)

The parties' briefs argue their respective positions as to the merits of the declaratory judgment/quiet title action—Ms. Stewart attempting to show that Plaintiffs cannot obtain a declaratory judgment/title in their favor, and Plaintiffs attempting to show that they are so entitled.

Specifically, Ms. Stewart contends that “[t]he judicially noticeable recorded chain of title establishes that Plaintiffs' Deed of Trust was recorded on December 17, 2024, before the Grant Deed conveying title to CLC as Trustee of the Dry Creek Trust was recorded on December 30, 2024. A deed of trust recorded before the trustor holds record title is outside the chain of title and cannot support quiet title, priority, or bona fide encumbrancer relief against Stewart.” (Dem., 4:8-13; see Mem., 10:3-5, citing *Far West Savings & Loan Assn. v. McLaughlin* (1988) 201 Cal.App.3d 67, 72-74; Civ. Code, §§ 1213, 1214; see also Reply, 6:7-7:1.)

In Opposition, Plaintiffs argue that the Property lawfully transferred from Ms. Stewart to the Dry Creek Trust upon delivery and the date of signing the Trust GD, not the recording date. (See Opp., 5:7-12, citing Civ. Code §§ 1054, 1217.) Plaintiffs further argue in support of their theories of after-acquired title doctrine (see Opp., 5:13-6:9, citing *Noronha v. Stewart* (1988) 199 Cal.App.3d 485, 489 and *Far West*, *supra*, 201 Cal.App.3d 67) and bona fide encumbrancers doctrine (see Opp., 6:11-7:11).

Ms. Stewart appears to acknowledge that Civil Code sections 1054 and 1217 support Plaintiffs' position that the recording date of the Trust GD is not necessarily the date that title to property is deemed transferred; however, Ms. Stewart challenges the fact that the Complaint does not expressly allege facts to satisfy Civil Code sections 1054 and 1217. (Reply, 6:7-7:1.) Moreover, Ms. Stewart disputes the application of both the after-acquired title doctrine and bona fide encumbrancers doctrine. (See Reply, 4:10-5:25, 7:3-8:5.)

In Reply, Ms. Stewart contends that an argument she made through her Motion as to the Second Cause of Action also disposes of the First Cause of Action. Namely, that she owns no interest in the Property and was not part of the transfer between CLC and Plaintiffs, and therefore, as a stranger to the transfer with no interest in the Property, Ms. Stewart cannot be liable to Plaintiffs or bound by any relief. (Reply, 3:3-5, 4:6-9; 4:26-5:2.) Not so. The Complaint clearly alleges that Ms. Stewart holds a 35% beneficial interest in the Property under the Dry Creek Trust. The First Cause of Action seeks alternate declarations to confirm Plaintiffs' proper title to the Property, which would establish that Ms. Stewart's beneficial interest in the Property no longer exists. Thus, Ms. Stewart's asserted “stranger” status is belied by the allegations of the Complaint.

The focus of the parties' brief is the exact "actual, present controversy" regarding the parties' adverse claims to title, which comprises the First Cause of Action. Whether the First Cause of Action is ultimately determined to be in favor of Plaintiffs or Defendants is not a proper determination on demurrer. Rather, "[a] general demurrer to a cause of action for declaratory relief must be overruled as long as an actual controversy is alleged; the pleader need not establish it is also entitled to a favorable judgment. [Citations.] A general demurrer is usually not an appropriate method for testing the merits of a declaratory relief action 'because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff's interest.'" (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 7(I)-A, § 7:42.11.) "A declaratory relief claim is subject to general demurrer where it relates to a substantive claim that is *invalid as a matter of law*." (Weil & Brown, *supra*, § 7:42.12.)

Here, Ms. Stewart has not shown that the judicial declarations Plaintiffs seek are invalid as a matter of law. Rather, as noted, Ms. Stewart does not dispute that Civil Code sections 1054 and 1217 generally support Plaintiffs' primary position. Moreover, the Court does not find Ms. Stewart's arguments regarding the after-acquired title doctrine and bona fide encumbrancers doctrine show that the judicial declarations Plaintiffs seek are invalid as a matter of law.

Based on the foregoing, the Court finds that the Complaint alleges facts sufficient to constitute the first cause of action for quiet title/declaratory relief.

a. The First Cause of Action is not Uncertain

Ms. Stewart further argues that the first cause of action fails for uncertainty because the Complaint "pleads mutually destructive theories—that Plaintiffs took as bona fide encumbrancers without notice, and alternatively that they are protected by after-acquired title—without alleging which is operative, rendering the claim uncertain." (Dem., 4:15-18; see Mem., 10:25-11:12.)

As an initial matter, a complaint is not made uncertain by the fact that inconsistent, alternative theories are pled without alleging "which is operative." Ms. Stewart identifies no legal requirement to plead the "operative" theory when alternates are pled. Even assuming such a requirement exists, the Complaint seems to allege Plaintiffs' theories in order of priority, with the first listed as the reasonably construed "primary" or "operative" theory. (See Compl., ¶¶ 36.)

Ms. Stewart's Memorandum appears to clarify that her argument is, instead, that, by Plaintiffs invoking the "after acquired title doctrine" under one alternative theory, Plaintiffs concede facts negating Plaintiffs' bona fide encumbrancer status under the other alternative theory. (See Mem., 11:10-12, Reply, 5:5-11.) First, the Court finds no such concession of facts in the Complaint, or inferred by the allegations therein, that would negate Plaintiffs' alternate theories. Second, inconsistent theories pled alternatively do not render the Complaint "uncertain." A demurrer for uncertainty is disfavored and may only be sustained where the allegations render the complaint so incomprehensible that a defendant cannot reasonably respond. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) Third, it is well-established that "[w]hen a pleader is in doubt about what actually occurred or what can be established by the evidence, the pleader may plead in the alternative and

make inconsistent factual allegations.” (Weil & Brown, *supra*, § 6:242, citing *Mendoza v. Rast Produce Co., Inc.* (2006) 140 Cal.App.4th 1395, 1402; *Adams v. Paul* (1995) 11 Cal.4th 583, 593 [“a party may plead in the alternative and may make inconsistent allegations”].)

Based on the foregoing, the demurrer to the First Cause of Action is OVERRULED.

2. Second Cause of Action for Equitable Lien/Equitable Mortgage

a. *The Complaint Alleges Facts Sufficient to Constitute the Second Cause of Action*

Again, Ms. Stewart does not discuss or identify the elements of an equitable lien or equitable mortgage cause of action, despite her demurrer being grounded on an argument that the Complaint fails to allege facts sufficient to state such cause(s) of action.

An equitable lien may arise from a contract that reveals a sufficient intent to charge particular property with a debt or obligation, or out of general considerations of right and justice as applied to the relations of the parties and the circumstances of their dealings, including based on the doctrines of estoppel, unjust enrichment, and detrimental reliance. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 453, 455.)

The Second Cause of Action alleges: (1) Plaintiffs advanced money to CLC with the intent that Plaintiffs’ DOT would be in the senior lien position and free and clear of any other rights, title, liens or encumbrances, (2) Plaintiffs request that the Court impress an equitable lien on “Defendants’ interest” in the Property in the amount of \$476,047.61 plus interest in the same amount as set forth in the Note and 2008 WAMU DOT and giving that equitable lien the same priority as the Plaintiffs’ DOT, and (3) there will be no prejudice to Defendants because Defendants knew that their interest in the Property would not be senior or superior to Plaintiffs’ interests in the entirety of the Property. (Compl., ¶¶ 39-41.)

Ms. Stewart contends that “the loan funds were advanced to CLC and Utnehmer, not to Stewart, and pleads no agreement by Stewart, no unjust enrichment of Stewart, and no facts entitling Plaintiffs to impress an equitable lien on Stewart’s interest.” (Dem., 4:21-25; see also Mem., 9:6-13.) Ms. Stewart argues that the Complaint therefore fails to allege facts establishing an equitable lien because it does not allege, against Ms. Stewart, “facts showing an intent that specific property serve as security for an obligation, or circumstances of unjust enrichment that equity will remedy by impressing a lien.” (Mem., 11:15-22, citing *Zerin, supra*, 53 Cal.App.4th at 453-455.)

Plaintiffs clarify that the Second Cause of Action is an alternative to the First Cause of Action. (Opp., 7:13.) Plaintiffs argue that it is properly pled because Ms. Stewart is alleged to have a 35% interest in the Property through the Dry Creek Trust and that Plaintiffs’ funds, loaned to the Dry Creek Trust, were used to pay off a prior WAMU DOT secured against the Property. Therefore, Plaintiffs argue, Ms. Stewart’s position that Plaintiffs’ DOT and/or foreclosure sale is invalid, all while retaining the benefit from Plaintiffs’ funds paying off the WAMU DOT against the Property would give Ms. Stewart an unjust benefit. (Opp., 7:16-18.) In other words, “[a]s a result of Plaintiffs’ payment, [Ms.] Stewart’s 35% beneficial interest in the

trust was relieved of the burden of that lien. [Ms.] Stewart has been unjustly enriched to the extent that her beneficial interest has increased in value as a result of Plaintiffs' payment." (*Id.*, 7:18-19.)

Plaintiffs further argue that equitable subrogation does not require privity of contract between the paying party (Plaintiffs) and the party whose interest is benefited (Ms. Stewart). (Opp., 7:23-8:6.)

Ms. Stewart's only response is that Plaintiffs do not allege equitable subrogation in the Complaint; the cause of action is, instead, for "equitable lien/equitable mortgage." (Reply, 9:22-25.) Yet, Ms. Stewart does not identify or address any meaningful difference between causes of action for equitable subrogation and equitable lien in these circumstances. It is well-established that labels do not govern. "Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief." (*Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908.) "It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." (Weil & Brown, § 7:41-7:42.) Ms. Stewart does not dispute that the Second Cause of Action alleges facts supplying the elements of equitable subrogation as enumerated by Plaintiffs. (See Opp., 8:2-6; see Reply, 9:22-25.)

b. The Second Cause of Action is not Uncertain

Ms. Stewart further contends that the second cause of action is uncertain because "[i]t seeks an equitable lien 'in first position ... as of December 17, 2024,' while the Complaint's own allegations and the judicially noticeable record establish that Stewart had conveyed her interest to the Trust, leaving the basis, amount, and priority of any lien against Stewart indeterminate." (Dem., 4:27-5:3; Mem., 12:4-7.)

The foregoing is the universe of Ms. Stewart's argument on this point. The Court has a difficult time making anything of it. In Reply, Ms. Stewart appears to clarify that Plaintiffs' request for an equitable lien "in first position ... as of December 17, 2024" is contradicted by the Complaint's concession that CLC held no title as of December 17, 2024. (Reply, 5:12-15.) As noted under the First Cause of Action, there is no such concession made in, or inferred by the allegations of, the Complaint. Plaintiffs are clearly alleging that title transferred December 17, 2024. (Compl., ¶ 24.) Plaintiffs appear to construe Ms. Stewart's uncertainty argument as contending that it is impossible to obtain an equitable lien against Ms. Stewart because she conveyed her interest in the Property to the Dry Creek Trust. (Opp., 8:7-15.) Assuming *arguendo* the foregoing is Ms. Stewart's intended argument, it, too, fails. As Plaintiffs argue, they seek an equitable lien against the entire Property, to which Ms. Stewart purports to retain a 35% beneficial interest through the Dry Cree Trust, making her an appropriate defendant. (*Ibid.*)

Based on the foregoing, the demurrer to the Second Cause of Action is OVERRULED.